

AFTER RECORDING RETURN TO:

LANDYE BENNETT BLUMSTEIN LLP
1300 SW FIFTH AVENUE, SUITE 3500
PORTLAND, OR 97201

Document Title(s): (or transactions contained therein)

1. DECLARATION

Reference Number(s) of Documents assigned or released:

☐ Additional numbers on page ____ of document

Grantor(s): (Last name first, then first name and initials)

1. WYERS END, LLC, a Washington limited liability company

☐ Additional names on page ____ of document

Grantee(s): (Last name first, then first name and initials)

1. THE PUBLIC

☐ Additional names on page ____ of document

Abbreviated Legal Description as follows: (i.e. lot/block/plat or section/township/range/quarter/quarter

Lot 3 of WS-SP-2006-10

☐ Complete legal description is on page ____ of document

Assessor's Property Tax Parcel/Account Number(s):

03-11-1906-1003/00



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Klickitat Co.

AFTER RECORDING RETURN TO:
Landye Bennett Blumstein LLP
1300 SW Fifth Avenue, Suite 3500
Portland, OR 97201

**DECLARATION OF
PROTECTIVE COVENANTS, CONDITIONS, AND RESTRICTIONS
FOR WYERS END
AND MAINTENANCE AGREEMENT FOR TRACTS A-C**

Declarant: Wyers End, LLC, a Washington limited liability company

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**DECLARATION OF
PROTECTIVE COVENANTS, CONDITIONS, AND RESTRICTIONS
FOR WYERS END
AND MAINTENANCE AGREEMENT FOR TRACTS A-C**

THIS DECLARATION OF PROTECTIVE COVENANTS, CONDITIONS AND RESTRICTIONS FOR WYERS END ("Declaration") is made by Wyers End, LLC, a Washington limited liability company ("Declarant").

Recitals

A. Declarant is the owner of all the real property and improvements thereon located in White Salmon, Klickitat County, Washington, described as follows:

B. Lots 1-18, inclusive, and Tracts A-C as shown on the plat map of Wyers End filed for record on 1 April 2008, Auditor's File No. 1076247, Book 6, Pages 68 and 68A, in the plat records of the County of Klickitat, State of Washington (the "Property").

C. Declarant intends to develop Wyers End as a planned community. To establish Wyers End as a planned community, Declarant desires to impose these mutually beneficial covenants, conditions, restrictions, easements, assessments and liens on the Property, under a comprehensive general plan of improvement and development for the benefit of all Lots and Common Area in Wyers End.

D. Declarant has deemed it desirable for the efficient preservation of the values and amenities in Wyers End to create a nonprofit corporation, to which will be delegated and assigned the powers and authority to own, maintain and administer the Common Area and facilities, maintain, repair and replace certain portions of the Property, to administer and enforce the covenants, conditions, and restrictions of this Declaration, and to collect and disburse the assessments and charges hereinafter created.

E. The Declarant shall convey Tracts A-C to the Wyers End Owners' Association ("Association"). The Association shall assume the maintenance obligation of Tracts A-C for the benefit of all the Owners and assess the Owners of Lots equally for the expenses. Certain limited common expenses, and expenses related to roofing and exterior paint for Lots 19-28 when annexed, will be assessed against Lots and Owners benefiting from the expenditures in varying ratios.

NOW THEREFORE, Declarant declares that the Property shall be held, transferred, sold, conveyed and occupied subject to the following covenants, conditions, restrictions, easements, charges and liens, which shall run with the land, which shall be binding upon all parties having or acquiring any right, title or interest in the Property or any part thereof, and which shall inure to the benefit of the Association and of each Owner.



ARTICLE 1

DEFINITIONS

1.1 "Articles" shall mean the Articles of Incorporation for the nonprofit corporation, Wyers End Owners' Association, as filed with the Washington Secretary of State.

1.2 "Association" shall mean and refer to Wyers End Owners' Association, its successors and assigns.

1.3 "Board" shall mean the Board of Directors of the Association.

1.4 "Bylaws" shall mean and refer to the Bylaws of the Association which shall be recorded in the Klickitat County, Washington, deed records.

1.5 "Wyers End" shall mean Lots 1-18 of the Property and Tracts A-C as designated on the Plat of Wyers End, and shall include Lots 19-28 and Commercial Lots 1 and 2 when they are annexed to this Declaration.

1.6 "Common Area" shall mean and refer to Tracts A-C shown on the recorded Plat of the Property, including any improvements located thereon, which areas and improvements are intended to be devoted to the common use and enjoyment of the members and which land will be conveyed to the Association. The Tracts serve as means of vehicular access to the Lots, for limited parking, storage areas, utility installations and landscaping.

1.7 "Commonly Maintained Property" shall mean any property owned by a person or entity other than the Association for which the Association has the obligation to maintain, repair and replace. Commonly Maintained Property shall include all Common Landscape and Walkway Easements as designated on the Plat of Wyers End, all fencing, all sewer, water and other utility service pipes, lines, wire, conduits and the like, from the point where they are not maintained by the service provider to the boundary of the Lot served, and the two buildings on Tract A shall be Commonly Maintained Property. Commonly Maintained Property shall also include the roofs and siding of Lots 19-28 when they are annexed into the Association, but shall not include decks and railings, doors and door frames, windows and window frames or skylights and skylight frames (if any).

1.8 "Declaration" shall mean the covenants, conditions, restrictions, and all other provisions set forth in this Declaration.

1.9 "Declarant" shall mean and refer to Wyers End, LLC, a Washington limited liability company, and its successors or assigns, or any successor or assign to all or the remainder of its interest in the Property.

1.10 "General Plan of Development" shall mean Declarant's general plan of development of the Property, as approved by appropriate governmental agencies, as may be amended from time to time.



1.11 “Home” shall mean and refer to any portion of a structure situated on a Lot and designed and intended for use and occupancy as a residence by a single family or household.

1.12 “Lot” shall mean and refer to each and any of Lots 1-18; provided, however, that “Lot” shall not include Tracts A-C, and shall include Lots 19-28 and commercial Lots 1 and 2 when they are annexed to this Declaration.

1.13 “Maintenance Agreement” shall mean and refer to that separate agreement between the City of White Salmon and the Association guaranteeing the maintenance of all access and parking areas as required in condition #30 of the Findings and Decision of the White Salmon City Council dated 21 February 2007 record #1068737.

1.14 “Members” shall mean and refer to the Owners of Lots in Wyers End.

1.15 “Mortgage” means a recorded first mortgage, first trust deed, a first contract of sale that that creates a first lien against a Lot, and “mortgagee” means the holder, beneficiary or vendor of such mortgage, trust deed or contract of sale, but only when such holder, beneficiary or vendor notifies the Association in writing of the existence of such mortgage and gives the Association a current name and mailing address.

1.16 “Occupant” shall mean and refer to the occupant of a Home or commercial structure, whether such person is an Owner, a lessee or any other person authorized by the Owner to occupy the Home or commercial structure.

1.17 “Owner” shall mean and refer to the record owner, whether one or more persons or entities, of the fee simple title to any Lot or a purchaser in possession of a Lot under a land sale contract. The foregoing does not include persons or entities that hold an interest in any Lot merely as security for the performance of an obligation.

1.18 “Plat” shall mean and refer to the Plat of Wyers End recorded in the Plat Records of Klickitat County, Washington.

1.19 “Property” shall have the meaning attributed to such term in the Recitals of this Declaration.

1.20 “Reserve Account(s)” shall mean and refer to an account set up by the Board to hold funds for construction, improvements or maintenance of the Common Area and the Commonly Maintained Property.

1.21 “Rules and Regulations” shall mean and refer to the documents containing rules and regulations and policies adopted by the Board, as may be from time to time amended.

1.22 “Tracts” shall mean and refer to Tracts A-C as shown on the Plat.



ARTICLE 2

PROPERTY SUBJECT TO THIS DECLARATION

2.1 Development. The development of Wyers End shall consist of the Property, which shall be held, transferred, sold, conveyed and occupied subject to this Declaration. Declarant does not intend to build any Common Area improvements in Wyers End other than the private roads, sidewalks, a garden shed and a separate storage building on Tract A, fencing and landscaping features.

2.2 Declarant's Right of Annexation. Initially, Lots 1 through 18 of Wyers End are subject to this Declaration. However, the Declarant is reserving the right to annex Lots 19 through 28 and Commercial Lots 1 and 2. Upon such annexation, Lots 19 through 28 and Commercial Lots 1 and 2 and the owners thereof shall have the same rights and privileges and be subject to the same duties and obligations as are Lots 1 through 18 and the owners of those lots, subject to any additional obligations and restrictions that are set out in the Supplemental Declaration which effects such annexation.

ARTICLE 3

OWNERSHIP AND EASEMENTS

3.1 Non-Severability. The interest of each Owner in the use and benefit of the Common Area shall be appurtenant to the Lot owned by the Owner. No Lot shall be conveyed by the Owner separately from the interest in the Common Area. Any conveyance of any Lot shall automatically transfer the right to use the Common Area without the necessity of express reference in the instrument of conveyance. There shall be no judicial partition of the Common Area. Each Owner, whether by deed, gift, devise or operation of law, for such Owner's benefit and for the benefit of all other Owners, specifically waives and abandons all rights, interests and causes of action for judicial partition of any interest in the Common Area and agrees that no action for judicial partition shall be instituted, prosecuted or reduced to judgment. Ownership interests in the Common Area and Lots are subject to the easements granted and reserved in this Declaration. Each of the easements granted or reserved herein shall be deemed to be established upon the recordation of this Declaration and shall thenceforth be deemed to be covenants running with the land for the use and benefit of the Owners and their Lots and shall be superior to all other encumbrances applied against or in favor of any portion of Wyers End.

3.2 Ownership of Lots. Title to each Lot in Wyers End shall be conveyed in fee to an Owner. If more than one person and/or entity owns an undivided interest in the same Lot, such persons and/or entities shall constitute one Owner.

3.3 Ownership of Common Area. Subject to Section 3.5, title to any Common Area shall be conveyed to the Association not later than the date of the Turnover Meeting.

3.4 Easements. Individual deeds to Lots may, but shall not be required to, set forth the easements specified in this Article.

3.4.1 Easements on Plat. The Common Area and Lots are subject to the easements and rights-of-way shown on the Plat. After construction and prior to transfer of any

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lots effected, surveys shall be recorded as amendments to this document defining the exact boundaries of the Private Yard Easements and Common Landscape and Walkway Easements pictured on the Plat. Four such surveys shall be recorded, one for Lots 1 through 7, a second for Lots 8 through 12, a third for Lots 13 through 18, and a fourth for Lots 19 through 28 when annexed. Owners of Lots burdened by a Private Yard Easement may enter that easement area upon forty-eight (48) hours notice to the favored Lot Owner for purposes of exterior maintenance and repair of the their Home, or without notice if required to protect their Home from damage.

3.4.2 Easements for Common Area. Subject to the restrictions contained herein, every Owner shall have a non-exclusive right and easement of use and enjoyment in and to the Common Area, which shall be appurtenant to and shall pass with the title to every Lot.

3.4.3 Easements Reserved by Declarant. So long as Declarant owns any Lot, Declarant reserves an easement over, under and across the Common Area in order to carry out sales activities necessary or convenient for the sale of Lots. Declarant, for itself and its successors and assigns, hereby retains a right and easement of ingress and egress to, from, over, in, upon, under and across the Common Area and the right to store materials thereon and to make such other use thereof as may be reasonably necessary or incident to the construction of the improvements on the Property in such a way as not to interfere unreasonably with the occupancy, use, enjoyment or access to an Owner's Lot by such Owner or such Owner's family, tenants, employees, guests or invitees.

3.4.4 Additional Utility and Drainage Easements. Notwithstanding anything expressed or implied to the contrary, this Declaration shall be subject to all easements granted or acquired by Declarant for the installation and maintenance of utilities and drainage facilities necessary for the development of Wyers End. No structure, planting or other material that may damage or interfere with the installation or maintenance of utilities, that may change the direction of flow of drainage channels in the easements, or that may obstruct or retard the flow of water through drainage channels in the easement areas shall be placed or permitted to remain within any easement area.

3.4.5 Association's Easements. Declarant grants to the Association and its duly authorized agents and representatives such easements over the Lots and Common Area as are necessary to perform the duties and obligations of the Association, as set forth in this Declaration, the Bylaws, and the Articles, as the same may be amended.

3.4.6 Easement to Governmental Entities. Declarant grants a non-exclusive easement over the Common Area to all governmental and quasi-government entities, agencies, utilities, and their agents for the purposes of performing their duties as utility and service providers, and more specifically to the City of White Salmon to maintain all required access improvements and clearances if required by the Maintenance Agreement.

3.4.7 Perimeter Easement Benefiting Association. Declarant grants to the Association and its duly authorized agents and representatives an easement over that perimeter portion of each Lot that is included within the building setbacks set by applicable ordinances for the purposes of installation, maintenance, repair, and replacement of utilities, communication



lines, and drainage. The Board may grant or convey the easements reserved herein to any governmental body or agency and/or any public or private utility company or provider, upon a two-thirds (2/3) vote of the Board members at a duly called and held Board meeting.

3.4.8 Perimeter Easement Benefiting Owners. Every Owner shall have an easement over that perimeter portion of other Lots that is included within the building setbacks set by applicable ordinances as may be reasonably necessary to reach such Owner's Lot for purposes of exterior maintenance and repair of the Owner's Home and for maintaining the landscaping on the Owner's Lot.

3.4.9 Minor Encroachment Easements. When annexed Lots 19 through 28 shall have an easement over their neighbor(s) for minor encroachments of roof overhangs, railings, gutters, rain water leaders, flashing, trim, portions of footings and similar elements that are part of the original construction.

3.5 Declarant's Right to Dedicate Common Area and Grant Easements; Board's Authority After Title Transferred to Association. Declarant reserves the right and power to dedicate and/or convey any portion or all of Tracts A-C to any governmental body or agency without the approval of any other Owner or the Association. Declarant further reserves the right and power to grant an easement over Tracts A-C to any governmental body or agency or any public or private utility company or provider without the approval of any other Owner or the Association. Declarant's rights and power under this Section 3.5 shall expire when Tracts A-C are conveyed to the Association. Thereafter, the Board shall have the same powers reserved to Declarant and may exercise such power upon a two-thirds (2/3rds) or greater vote of the Board members at any duly called and held Board meeting. The provisions of this Section 3.5 shall control over any provisions to the contrary contained in any other section of the Declaration.

3.6 Easement for Neighboring Access. The property immediately adjacent to the eastern boundary of Tract B is granted a non-exclusive easement for vehicular access over the existing private streets in the Common Area. At the time this Declaration is recorded, the benefited land is undeveloped. At such time as it is developed, and the easement is used for the benefited land, the owner thereof shall pay a proportionate share to operate, maintain, repair and replace the Wyers End roadways, and payment of such share of expenses shall be a condition of the use of the easement by the owners and occupants of the benefited land. The proportional share paid by each residential unit served on the benefited land shall be equivalent to the total assessments paid by Lot 12 and payments shall be made on the same schedule. Any work required to reconfigure the road, curbs and drainage system to accommodate this access shall be approved by the Board in advance, shall be of equivalent quality as the existing construction, shall not increase the cost of insurance or maintenance for the Association and shall be done at the expense of the neighboring property. The Board shall require suitable financial guarantees of completion before any such work commences. Such easement shall be perpetual, appurtenant to, and shall run with the land.



ARTICLE 4

LOTS AND HOMES

4.1 Residential Use. Lots 1 through 18 shall only be used for residential purposes in compliance with applicable laws and regulations. When Lots 19 through 28 are annexed to this Declaration, they may be used for residential or commercial purposes. Provided, however, the commercial use of these lots shall be limited to low impact commercial uses which are incidental to a primary residential purpose of the homes developed on said lots. Commercial uses which are likely to generate customer traffic and parking demands of employees, customers and clients who do not reside in the homes at Wyers End are prohibited. Examples of acceptable commercial uses include home occupations as defined in the White Salmon Municipal Code "WSMC" Title 17 and consulting and professional services that are conducted without frequent customer or client visits. When they are annexed, any commercial use permitted for the zone shall be permitted on Commercial Lots 1 and 2, as limited by restrictions which the Declarant may put in the Supplemental Declaration annexing such Lots to this Declaration.

Nothing in this Section 4.1 shall be deemed to prohibit (a) activities relating to the sale of residences, and (b) the right of Declarant or any contractor or homebuilder to construct residences on any Lot, to store construction materials and equipment on such Lots in the normal course of construction, and to use any residence as a sales office or model home for purposes of sales in Wyers End.

4.2 Rental. Owners may rent their homes for periods of not less than six months, provided that; 1) they post a maintenance bond with the Association in an amount established by the Association for all such rentals, 2) they contract to maintain their private yard with the same firm that maintains the Association landscaped area, and 3) the rental contract stipulates that the tenants are subject to this Declaration, the Bylaws and any rules promulgated by the Association.

4.3 Landscaping and Irrigation. The landscaping maintenance and irrigation costs for the Common Landscape and Walkway Easement areas shall be borne by the Association.

4.4 Maintenance of Lots and Homes. Each Owner shall maintain such Owner's Lot and all improvements thereon in a clean and attractive condition, in good repair and in such fashion as not to create a fire hazard. Such maintenance shall include, without limitation, maintenance of windows, doors, garage doors, walks, patios, chimneys, and glass surfaces. Each Owner shall repair damage caused to such Owner's Lot or improvements located thereon by fire, flood, storm, earthquake, riot, vandalism, or other causes within a reasonable period. The Association shall maintain the roofs and exterior paint of the homes on Lots 19 through 28 when they are annexed, but shall not maintain the decks and railings, doors and door frames, windows and window frames or skylights and skylight frames. Those lots shall be assessed separately for this maintenance and a replacement reserve for those items.

4.5 Animals. No animals, livestock or poultry of any kind, other than a reasonable number of household pets that are not kept, bred or raised for commercial purposes

and that are reasonably controlled so as not to be a nuisance, shall be raised, bred, kept or permitted within any Lot.

4.6 Nuisance. No noxious, harmful or offensive activities shall be carried on upon any Lot or Common Area. Nor shall anything be done or placed on any Lot or Common Area that interferes with or jeopardizes the enjoyment of, or that is a source of annoyance to, the Owner or other Occupants.

4.7 Exterior Heating or Cooling Facilities. Exterior heating and cooling facilities shall be sited to minimize the noise and visual impact they may have on the site. Existing facilities may be replaced only with facilities of equivalent or lower noise rating in a similar size and location.

4.8 Parking. Boats, trailers, commercial vehicles, motor homes, campers, and other recreational vehicles, regardless of weight, shall not be parked or left unattended on any part of the Common Area or the Lots, including inside garages, at any time.

4.9 Vehicles in Disrepair. No Owner shall permit any vehicle that is in a state of disrepair (e.g. including, but not limited to, fails to run, cannot be moved under its own power in current condition, flat tires, unpainted or body parts missing) or that is not currently licensed to be abandoned or to remain parked upon the Common Area or on any street on or adjacent to the Property at any time and may not permit them on a Lot for a period in excess of seven (7) days. A vehicle shall be deemed in a "state of disrepair" when the Board reasonably determines that its presence offends the occupants of the neighborhood. If an Owner fails to remove such vehicle within five (5) days following the date on which the Association mails or delivers to such Owner a notice directing such removal, the Association may have the vehicle removed from the Property and charge the expense of such removal to the Owner as an Assessment, which may be collected and enforced as any other assessments imposed pursuant to the Declaration and Bylaws.

4.10 Rubbish and Trash. No Lot or part of the Common Area shall be used as a dumping ground for trash or rubbish of any kind. All garbage and other waste shall be kept in appropriate containers for proper disposal and out of public view. If an Owner fails to remove any trash, rubbish, garbage, or any similar materials from any Lot, any streets or the Common Area where deposited by such Owner or the Occupants of such Owner's Lot after notice has been given by the Board to the Owner, the Association may have such materials removed and charge the expense of such removal to the Owner. Such charge shall constitute an Assessment, which may be collected and enforced as any other assessments imposed pursuant to the Declaration and Bylaws.

4.11 Fences and Hedges. No fences or boundary hedges shall be installed on any Lot other than those installed during the original construction. Such fences and boundary hedges shall be the property of the Association and shall be maintained by the Association.

4.12 View of Mt. Hood. No Owner shall allow any landscape or building element to substantially encroach upon a neighbors existing view of Mt. Hood. For views from



Lots 19 through 28 this shall only apply to views above the deck railing height on the second floor.

4.13 Antennas and Satellite Dishes. Except as otherwise provided by law or this section, no exterior antennas, satellite dishes, microwave, aerial, tower or other devices for the transmission or reception of television, radio or other forms of sound or electromagnetic radiation shall be erected, constructed or placed on any Common Area or Lot. Exterior satellite dishes with a surface diameter of one (1) meter or less and antennas designed to receive television broadcast signals or multi-channel multi-point distribution (wireless cable), may be placed on an Owner's Lot if they are not visible from the street and are screened from neighboring Lots. This section and any rules adopted hereunder shall not unreasonably delay or increase the cost of installation, maintenance or use, or preclude reception of a signal of acceptable quality.

4.14 Basketball Hoops. Basketball hoops shall be prohibited in the Common Area and on any Lot if the area of play is intended to be the street or any Common Area.

4.15 Grades, Slopes and Drainage. There shall be no interference with the established drainage patterns or systems over or through any Lot within Wyers End so as to affect any other Lot or Common Area or any real property outside Wyers End unless adequate alternative provision is made for proper drainage and is approved by the Board. The term "established drainage" shall mean the drainage swales, conduits, inlets and outlets designed and constructed for Wyers End.

4.16 Right of Maintenance and Entry by Association. If an Owner fails to perform maintenance and/or repair that such Owner is obligated to perform pursuant to this Declaration, and if the Board determines, after notice, that such maintenance and/or repair is necessary to preserve the attractiveness, quality, nature and/or value of Wyers End, the Board may cause such maintenance and/or repair to be performed and may enter any such Lot whenever entry is necessary in connection with the performance thereof. An Owner may request, and the Board shall conduct, a hearing on the matter. The Owner's request shall be in writing delivered within five (5) days after receipt of the notice, and the hearing shall be conducted within not less than five (5) days nor more than twenty (20) days after the request for a hearing is received. Entry shall be made with as little inconvenience to an Owner as practicable and only after advance written notice of not less than forty-eight (48) hours, except in emergency situations. The costs of such maintenance and/or repair shall be chargeable to the Owner of the Lot as an Assessment, which may be collected and enforced as any other assessments authorized hereunder.

4.17 Association Rules and Regulations. The Board from time to time may adopt, modify or revoke such Rules and Regulations governing the conduct of persons and the operation and use of Lots and the Common Area as it may deem necessary or appropriate to assure the peaceful and orderly use and enjoyment of the Property and the administration and operation of the Association. A copy of the Rules and Regulations, upon adoption, and a copy of each amendment, modification or revocation thereof, shall be delivered by the Board promptly to each Owner and shall be binding upon all Owners and occupants of all Lots upon the date of



delivery or actual notice thereof. The method of adoption of such Rules and Regulations shall be provided in the Bylaws of the Association.

4.18 Ordinances and Regulations. The standards and restrictions set forth in this Article 4 shall be the minimum required. To the extent that local governmental ordinances and regulations are more restrictive or provide for a higher or different standard, such local governmental ordinances and regulations shall prevail.

ARTICLE 5

COMMON AREA AND COMMONLY MAINTAINED PROPERTY

5.1 Use of Common Areas. Use of the Common Area and Commonly Maintained Property is subject to the provisions of the Declaration, Bylaws, Articles and the Rules and Regulations adopted by the Board. There shall be no obstruction of any part of the Common Area or Commonly Maintained Property. Nothing shall be stored or kept in the Common Area or Commonly Maintained Property without the prior written consent of the Board. No alterations or additions to the Common Area or Commonly Maintained Property shall be permitted without the prior written consent of the Board. The Common Area owned by the Association consists solely of Tracts A-C.

5.2 Maintenance of Common Area and Commonly Maintained Property. The Association shall be responsible for maintenance, repair, replacement, and upkeep of the Common Area and Commonly Maintained Property, the cost, net of reimbursements for use of Limited Common Areas and expenses related to roofing and exterior paint for Lots 19-28 when annexed, shall be at the equal expense of the Owners of the Lots. Except, when annexed Commercial Lots 1 and 2 shall be assessed four (4) and five (5) lot shares respectively to reflect their voting rights and their street frontage. The Association shall keep the Common Area and Commonly Maintained Property in good condition and repair, provide for all necessary services and cause all acts to be done which may be necessary or proper to assure the maintenance of the Common Area and Commonly Maintained Property.

5.3 Alterations to Common Area. Only the Association shall construct, reconstruct, or alter any improvement located on the Common Area or Commonly Maintained Property. A proposal for any construction of or alteration, maintenance or repair to any such improvement may be made at any Board meeting. A proposal may be adopted by the Board, subject to the limitations contained in the Bylaws, this Declaration; provided, however, no improvements may be made to the Common Area or Commonly Maintained Property except the construction, repair and reconstruction of utility installations, landscaping, fencing, street lights, curbs and sidewalks.

5.4 Funding. Expenditures for alterations, maintenance or repairs to an existing improvement for which a reserve has been collected shall be made from the Reserve Account. As provided in Section 10.5, the Board may levy a special assessment to fund any construction, alteration, repair or maintenance of an improvement (or any other portions of the Common Area and Commonly Maintained Property) for which no reserve has been collected or for which the Reserve Account is insufficient to cover the cost of the proposed improvement.



5.5 Landscaping. All landscaping on any Lot, the Common Area or Commonly Maintained Property shall be maintained and cared for in a manner that is consistent with Declarant's or the Board's original approval of such landscaping. Weeds and diseased or dead lawn, trees, ground cover or shrubs shall be removed and replaced. Lawns shall be neatly mowed and trees and shrubs shall be neatly trimmed. All landscaping shall be irrigated in a horticulturally proper manner, subject to water use restrictions or moratoria by government bodies or agencies.

5.6 Lighting. The Association shall maintain the pathway lighting in the Common Area and the Common Landscape and Walkway Easement, and pay the electric utility charges.

5.7 Stormwater Facilities. The Association shall keep all stormwater facilities, including all roadway gutters, catch basins, pipes and infiltration areas free of debris and sediment to ensure they are functioning as required by the City of White Salmon and State of Washington Department of Ecology storm water standards and all other applicable regulations.

5.8 Condemnation of Common Area. If all or any portion of the Common Area is taken for any public or quasi-public use under any statute, by right of eminent domain or by purchase in lieu of eminent domain, the entire award shall be received by and expended by the Board in a manner that, in the Board's discretion, is in the best interest of the Association and the Owners. The Association shall represent the interest of all Owners in any negotiations, suit, action or settlement in connection with such matters.

5.9 Damage or Destruction of Common Area. If all or any portion of the Common Area or Commonly Maintained Property is damaged or destroyed by an Owner or any of Owner's guests, Occupants, tenants, licensees, agents or members of Owner's family in a manner that would subject such Owner to liability for such damage under Washington law, such Owner hereby authorizes the Association to repair such damage. The Association shall repair the damage and restore the area in workmanlike manner as originally constituted or as may be modified or altered subsequently by the Association in the discretion of the Board. Reasonable costs incurred in connection with effecting such repairs shall become a special assessment upon the Lot and against the Owner who caused or is responsible for such damage.

5.10 Power of Association to Sell, Dedicate or Transfer Common Area. The Association may sell, dedicate, transfer, grant a security interest in, or grant an easement for installation and maintenance of utilities or for similar purposes with respect to, any portion of the Common Area. Except for grants of easements for utility-related purposes, no such sale, dedication, transfer, or grant of a security interest shall be effective unless approved by eighty percent (80%) of the votes of both Class A and Class B members. Provided further, except as provided in Section 3.5, if there is only one class of votes, such sale, dedication, transfer, or grant of a security interest (other than a grant of an easement for utility-related purposes) must be approved by eighty percent (80%) of the votes held by Owners other than Declarant.

5.11 Utility Installations. The utility installations which constitute Commonly Maintained Property shall be maintained by the Association and the expense thereof, including



any replacement reserves, shall be included in the Association's budget and assessed equally to the Owners of the Lots.

5.12 Limited Common Areas. The storage building on Tract A contains seven (7) limited common areas for Lots 1 through 7 and an eighth storage area for the use of the Association. Parking spaces numbered 1 through 7 are limited common areas for the use of Lots 1 through 7. The garden shed and covered patio on Tract A are limited common areas for the use of Lots 1 through 7. The Association shall impose a reasonable charge to these Lot owners for the use of these limited common areas, which shall be maintained by and at the expense of the Association. The cost to maintain, repair and replace these limited common areas shall be shared equally by the owners of Lots 1 through 7, and the Association with respect to the eighth storage area.

ARTICLE 6

ARCHITECTURAL REVIEW

6.1 Architectural Review. Any changes to the exterior of structures, including paint color, addition of structures, or substantial alteration of landscape, including the removal of any large trees, shall be approved by the Board in advance.

6.2 Board's Discretion. The Board, at its sole discretion, may withhold consent to any proposed work if the Board finds the proposed work would be inappropriate for the particular Lot or incompatible with the design standards of Wyers End. The Board may consider siting, shape, size, color, design, height, solar access or other effect on the enjoyment of other Lots or the Common Area, and any other factors that it reasonably believes to be relevant in determining whether or not to consent to any proposed work.

6.3 Nonwaiver. Consent by the Board to any matter proposed to it or within its jurisdiction shall not be deemed to constitute precedent or waiver impairing its right to withhold approval as to any similar matter thereafter proposed or submitted to it for consent.

6.4 Liability. Neither the Board nor any member thereof shall be liable to any person or entity for any damage, loss or prejudice suffered or claimed on account of any action or failure to act of the Board or a member thereof, provided only that the Board or the member has, in accordance with its or his actual knowledge, acted in good faith.

6.5 Declarant and Successor Exempt From Article 6. The Declarant or a successor to all of the unsold Lots shall be exempt of all provisions of this Article 6.

ARTICLE 7

MEMBERSHIP IN THE ASSOCIATION

7.1 Members. Each Owner shall be a member of the Association. Membership in the Association shall be appurtenant to, and may not be separated from, ownership of any Lot. Transfer of ownership of a Lot shall transfer automatically membership in the Association. Without any other act or acknowledgment, Occupants and Owners shall be governed and

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controlled by this Declaration, the Articles, Bylaws, and the Rules and Regulations of the Association and any amendments thereof.

7.2 Proxy. Each Owner may cast such Owner's vote in person, by written ballot or pursuant to a proxy executed by such Owner. An Owner may not revoke a proxy given pursuant to this Section 7.2 except by actual notice of revocation to the person presiding over a meeting of the Association. A proxy shall not be valid if it is undated or purports to be revocable without notice. A proxy shall terminate one (1) year after its date, unless the proxy specifies a shorter term.

7.3 Voting Rights. The Association shall have two (2) classes of voting members:

7.3.1 Class A. Class A members shall be all Owners of Lots other than Declarant, and each Class A member shall be entitled to one (1) vote for each Lot owned with respect to all matters upon which Owners are entitled to vote, except that when annexed Commercial Lot 1 shall have four (4) votes, and Commercial Lot 2 shall have five (5) votes.

7.3.2 Class B. The Class B member shall be Declarant, its successors and assigns. The Class B member shall have five (5) votes for each Lot owned. The Class B membership shall cease and be converted to Class A membership upon the earlier of the following dates (the "Termination Date"):

- (a) Twenty (20) years after the date this Declaration is recorded;
- (b) The Declarant owns no Lots in Wyers End; and
- (b) At such earlier time as Declarant elects in writing to terminate Class B membership.

After the Termination Date, each Owner, including Declarant, shall be entitled to one (1) vote for each Lot owned with respect to all matters upon which Owners are entitled to vote, and the total number of votes shall be equal to the total number of Lots subject to this Declaration, initially or through annexation.

When more than one (1) person or entity owns a Lot, the vote for such Lot may be cast as they shall determine, but in no event shall fractional voting be allowed. Fractional or split votes shall be disregarded, except for purposes of determining a quorum.

7.4 Procedure. All meetings of the Association, the Board and Association committees shall be conducted with such rules of order as may from time to time be adopted by the Board. Notwithstanding which rule of order is adopted, the President shall be entitled to vote on all matters, not merely to break a tie vote. A tie vote does not constitute a majority or approval of any motion or resolution.

ARTICLE 8

DECLARANT CONTROL

8.1 Interim Board and Officers. Declarant hereby reserves administrative control of the Association. Declarant, in its sole discretion, shall have the right to appoint and remove members of an interim board (the "Interim Board"), which shall manage the affairs of the Association and be invested with all powers and rights of the Board until the Turnover Meeting (as hereinafter defined). The Interim Board shall consist of from one (1) to three (3) members. Notwithstanding the provision of this Section 8.1, at the Turnover Meeting, at least one (1) Director shall be elected by Owners other than Declarant, even if Declarant otherwise has voting power to elect all three (3) Directors.

8.2 Turnover Meeting. Declarant shall call a meeting for the purposes of turning over administrative control of the Association from Declarant to the Class A members at the date provided in the Bylaws.

ARTICLE 9

DECLARANT'S SPECIAL RIGHTS

9.1 General. Declarant is undertaking the work of developing Lots and other improvements within Wyers End. The completion of the development work and the marketing and sale of the Lots is essential to the establishment and welfare of the Property as a residential community. Until the Homes on all Lots on the Property have been constructed, fully completed and sold, with respect to the Common Area and each Lot on the Property, Declarant shall have the special rights set forth in this Article 9.

9.2 Marketing Rights. Declarant shall have the right to maintain a sales office and model on one or more of the Lots which Declarant owns. Declarant and prospective purchasers and their agents shall have the right to use and occupy the sales office and models during reasonable hours any day of the week. Declarant may maintain a reasonable number of "For Sale" signs at reasonable locations on the Property, including, without limitation, on the Common Area.

9.3 Declarant Easements. Declarant reserves easements over the Property as more fully described in Sections 3.4 and 3.5 hereof.

9.4 Additional Improvements. Declarant does not agree to build any improvements not described in this Declaration.

ARTICLE 10

FUNDS AND ASSESSMENTS

10.1 Purpose of Assessments; Expenses. The assessments levied by the Association shall be used exclusively to promote the recreation, health, safety, aesthetics and welfare of the Owners and Occupants of Wyers End, for the improvement, operation and maintenance of the



Common Area and the Commonly Maintained Property, for the payment of obligations of the Association, for the administration and operation of the Association and for property and liability insurance.

10.2 Covenants to Pay. Declarant and each Owner covenant and agree to pay the Association the assessments and any additional charges levied pursuant to this Declaration or the Bylaws. All assessments for operating expenses, repairs and replacement and reserves shall be allocated among the Lots and their Owners as set forth in Section 10.4.2.

10.2.1 Funds Held in Trust. The assessments collected by the Association shall be held by the Association for and on behalf of each Owner and shall be used solely as set forth in Section 10.1. The assessments are the property of the Association and are not refundable to Owners or Lots. Upon the sale or transfer of any Lot, the Owner's interest in such funds shall be deemed automatically transferred to the successor in interest to such Owner.

10.2.2 Offsets. No offsets against any assessment shall be permitted for any reason, including, without limitation, any claim that the Association is not properly discharging its duties.

10.2.3 Right to Profits. Association profits, if any, shall be the property of the Association and shall be contributed to the Current Operating Account.

10.3 Basis of Assessment; Commencement of Assessments. The Declarant shall pay all common expenses of the Association until the Lots are assessed for common expenses. The amount of the initial annual assessment to Owners other than the Declarant shall be determined by the Declarant. Assessments are to be levied against all Lots whether or not such Lots have been improved with a completed Home; provided, however, the Declarant shall be exempt from paying the operation portion of the assessments on all Lots owned by it, as more specifically set forth in Section 10.3.1 below.

10.3.1 Commencement of Operating Assessments. The date of commencement of the operation portion of the assessments shall be determined by the Declarant; however, in no event shall they commence later than the turnover meeting; provided, however, the Declarant shall be exempt from paying the operation portion of the assessment on all Lots owned by it.

10.3.2 Commencement of Reserves. The reserve portion of the assessment shall commence for each Lot from date of first conveyance of a Lot from the Declarant to a third party. The Declarant may defer payment of accrued reserve assessments for a Lot until the Lot is conveyed to a third person. However, the Declarant may not defer payment of the reserve assessment beyond the date of the turnover meeting.

10.4 Annual Assessments. Annual assessments for each fiscal year shall be established when the Board approves the budget for that fiscal year. The initial assessment and the implementation thereof shall be determined by the Declarant and shall be prorated on a monthly basis. For prospective purposes, any portion of a month shall count as a full month. Annual

assessments shall be levied on a fiscal year basis. The fiscal year shall be the calendar year unless another year is adopted by vote of the Association members. Unless otherwise specified by the Board, annual assessments shall be due and payable on the first day of each calendar year during the term of this Declaration. The Board of Directors, in its discretion, may provide for payment of assessments on a periodic basis no less often than monthly.

10.4.1 Budgeting. Regardless of the number of Members or the amount of assets of the Association, each year the Board shall prepare, approve and make available to each Member a pro forma operating statement (budget) containing: (i) estimated revenue and expenses; (ii) the amount of the total cash reserves of the Association currently available for replacement or major repair of the Common Area, Commonly Maintained Property and for contingencies; (iii) an itemized estimate for the remaining life of, and the methods of funding to defray repair, replacement or additions to major components of the Common Area and Commonly Maintained Property as provided in Section 10.6.2; and (iv) a general statement setting forth the procedures used by the Board in the calculation and establishment of reserves to defray the costs of repair, replacement or additions to major components of the Common Area and Commonly Maintained Property. For the first fiscal year, the budget shall be approved by the Board no later than the date on which annual assessments are scheduled to commence. Thereafter, the Board shall annually prepare and approve the budget and distribute a copy thereof to each Member, together with written notice of the amount of the annual assessments to be levied against the Owner's Lot, not less than thirty (30) days and not more than ninety (90) days prior to the beginning of the fiscal year.

10.4.2 Allocation of Assessments. The total amount in the budget shall be charged equally against all Lots subject to assessment. Except that Lots 1 through 7 shall have a supplemental assessment for use of limited common elements, and when annexed Lots 19 through 28 shall have a supplemental assessment for their roof and exterior paint maintenance and reserve.

10.4.3 Nonwaiver of Assessments. If before the expiration of any fiscal year the Association fails to fix annual assessments for the next fiscal year, the annual assessments established for the preceding year shall continue until a new annual assessment is fixed.

10.5 Special Assessments. The Board and/or the Owners shall have the power to levy special assessments against an Owner or all Owners in the following manner for the following purposes:

10.5.1 Correct Deficit. To correct a deficit in the operating budget, by vote of a majority of the Board;

10.5.2 Special Obligations of an Owner. To collect amounts due to the Association from an Owner for breach of the Owner's obligations under this Declaration, the Bylaws, or the Rules and Regulations, by vote of a majority of the Board;

10.5.3 Repairs. To collect additional amounts necessary to make repairs or renovations to the Common Area or Commonly Maintained Property if sufficient funds are not



available from the operating budget or replacement reserve accounts, by vote of a majority of the Board;

10.5.4 Capital Improvements. To make capital acquisitions, additions or improvements, by vote of at least eighty percent (80%) of all votes allocated to the Lots; or

10.5.5 Reimbursement Assessments. The Association shall levy a Reimbursement Assessment against any Owner and such Owner's Lot if a failure to comply with this Declaration, Bylaws, Architectural Standards or any Rules and Regulations has (i) necessitated an expenditure of monies by the Association to effect compliance or (ii) resulted in the imposition of a fine or penalty against such Owner or such Owner's Lot (a "Reimbursement Assessment"). A Reimbursement Assessment shall be due and payable to the Association when levied. A Reimbursement Assessment shall not be levied by the Association except upon at least ten (10) days' written notice to the Owner being assessed. If, within said ten (10) day period, the Owner makes a written request to the Board for a hearing, a hearing shall be held. Upon request for a hearing, the Board shall conduct it not less than ten (10) nor more than thirty (30) days after the request by the Owner, and shall make its decision within not more than thirty (30) days after the hearing is held. If a notice has been previously given, and the hearing has already been held or waived (in writing or by the Owner's failure to appear) for the violation resulting in the Reimbursement Assessment, no additional notice and hearing is required prior to levying the Reimbursement Assessment.

10.6 Accounts.

10.6.1 Types of Accounts. Assessments collected by the Association shall be deposited into at least two (2) separate accounts with a bank, which accounts shall be clearly designated as (i) the Current Operating Account and (ii) the Reserve Account. The Board shall deposit those portions of the assessments collected for current maintenance and operation into the Current Operating Account and shall deposit those portions of the assessments collected as reserves for replacement and deferred maintenance of capital improvements into the Reserve Account. Withdrawal of funds for the Association's Reserve Account shall require the signatures of either two (2) Directors or one (1) Director and an officer of the Association who is not a Director. In its books and records, the Association shall account separately for operating expenses relating to the Common Area/Commonly Maintained Property and operating expenses relating to all other matters, as well as for necessary reserves relating to the Common Area/Commonly Maintained Property and necessary reserves relating to all other matters.

10.6.2 Reserve Account. Declarant shall establish a Reserve Account, in the name of the Association, which shall be kept separate from all other funds held by the Association. The Association shall pay out of the Reserve Account only those costs that are attributable to the maintenance, repair or replacement of Common Area property and Commonly Maintained Property that normally requires replacement, in whole or in part, within three (3) to thirty (30) years and not for regular or periodic maintenance and expenses. No funds collected for the Reserve Account may be used for ordinary current maintenance and operation purposes.



10.6.2.1 Calculation of Reserve Assessment. Notwithstanding, Wyers End is exempt from conducting reserve studies and maintaining reserve accounts, Declarant has deemed it in the best interest of the Association to create a reserve assessment for Common Area property and Commonly Maintained Property that normally requires repair or replacement in whole or in part, within three (3) to thirty (30) years. The Declarant is not required to undertake a reserve study nor has the Declarant done so. The reserve assessment is based on the estimated remaining life and current replacement cost of Common Area property and Commonly Maintained Property which normally requires replacement, in whole or in part, within three (3) to thirty (30) years. Not less often than annually, the Board of Directors shall inventory all items of Common Area property and shall estimate the remaining life of each item and the current replacement cost of each of such items. The total Reserve Account assessment shall be equal to the sum of the estimated replacement cost of each item which has an estimated life of greater than three (3) but less than thirty (30) years, divided by the estimated number of years of life for such item. The Board of Directors shall establish a thirty-year plan with regular and adequate contributions, adjusted by estimated inflation and interest earned on reserves, to meet the maintenance, repair, and replacement schedule. The reserve account assessment shall be allocated pursuant to Section 10.4.2.

10.6.2.2 Loan From Reserve Account. After the Turnover Meeting described in Section 8.2, the Board may borrow funds from the Reserve Account to meet high seasonal demands on the Association's regular operating fund or to meet unexpected increases in expenses. Funds borrowed must be repaid later from assessments if the Board has adopted a resolution, which may be an annual continuing resolution, authorizing the borrowing of funds. Not later than the adoption of the budget for the following year, the Board shall adopt by resolution a written payment plan providing for repayment within a reasonable period.

10.6.2.3 Increase or Reduction of Reserve Account Assessment. At any time after the second year after the Turnover Meeting, future assessment for the Reserve Account may be increased or reduced by the vote of Owners of Lots representing seventy-five percent (75%) of the votes computed in accordance with Section 7.3.

10.6.2.4 Investment of Reserve Account. Nothing in this Section 10.6 prohibits the prudent investment of Reserve Account funds, subject to any constraints imposed by the Board, the Bylaws or the Rules and Regulations.

10.6.2.5 Refunds of Assessments. Assessments paid into the Reserve Account are the property of the Association and are not refundable to sellers or Owners of Lots. Sellers or Owners of Lots may treat their outstanding share of the Reserve Account's balance as a separate item in the sales contract providing for the conveyance of their Lot.

10.6.3 Current Operating Account. All costs other than those to be paid from the Reserve Account pursuant to Section 10.6.2 may be paid from the Current Operating Account.



10.7 Default in Payment of Assessments; Enforcement of Liens.

10.7.1 Personal Obligation. All assessments properly imposed under this Declaration or the Bylaws shall be the joint and several personal obligations of all Owners of the Lot to which such assessment pertains. In a voluntary conveyance (that is, one other than through foreclosure or a deed in lieu of foreclosure), the grantees shall be jointly and severally liable with the grantors for all Association assessments imposed through the recording date of the instrument effecting the conveyance. A suit for a money judgment may be initiated by the Association to recover such assessments without either waiving or foreclosing the Association's lien.

10.7.2 Association Lien. The Association shall have a lien against each Lot for any assessment (of any type provided for by this Declaration or the Bylaws) or installment thereof that is delinquent. The Association's lien shall accumulate all future assessments or installments, reimbursement assessments, interest, late fees, penalties, fines, attorneys' fees (whether or not suit or action is instituted), actual administrative costs, and other appropriate costs properly chargeable to an Owner by the Association, until such amounts are fully paid. Recording of the Declaration constitutes record notice and perfection of the lien. Said lien may be foreclosed at any time pursuant to the procedures generally available in the State of Washington for foreclosing a consensual lien. The Association shall record a notice of a claim for assessments and other charges in the deed records of Klickitat County, Washington, before any suit to foreclose may be filed. The lien of the Association shall be superior to all other liens and encumbrances except property taxes and assessments, any first mortgage, deed of trust or land sale contract recorded before the Association's notice of lien.

10.7.3 Interest; Fines; Late Fees; Penalties. The Board, in its reasonable discretion, may from time to time adopt resolutions to set the rate of interest and to impose late fees, fines and penalties on delinquent assessments or for violations of the provisions of this Declaration, the Bylaws, Architectural Standards and the Rules and Regulations adopted by the Board. The adoption of such impositions shall be communicated to all Owners in writing not less than thirty (30) days before the effective date by a notice mailed to the assessment billing address of such Owners. Such impositions shall be considered assessments that are lienable and collectible in the same manner as any other assessments; provided, however, that fines or penalties for violation of this Declaration, the Bylaws or any rule and regulation, other than late fees, fines or interest arising from an Owner's failure to pay regular, special or Reimbursement Assessments may not be imposed against an Owner or such Owner's Lot until such Owner is given an opportunity for a hearing as elsewhere provided herein.

10.7.4 Acceleration of Assessments. If an Owner is delinquent in payment of any assessment or installment on any assessment, the Association, upon not less than ten (10) days' written notice to the Owner, may accelerate the due date of the full annual assessment for that fiscal year and all future installments of any special assessments.



10.7.5 Association's Right to Rents; Receiver. In any foreclosure suit by the Association with respect to such lien, the Association shall be entitled to collect reasonable rent from the defaulting Owner for the use of such Owner's Lot or shall be entitled to the appointment of a receiver.

ARTICLE 11

GENERAL PROVISIONS

11.1 Records. The Board shall preserve and maintain minutes of the meetings of the Association, the Board and any committees. The Board also shall keep detailed and accurate financial records, including individual assessment accounts of Owners, the balance sheet, and income and expense statements. Individual assessment accounts shall designate the name and address of the Owner or Owners of the Lot, the amount of each assessment as it becomes due, the amounts paid upon the account, and the balance due on the assessments. The minutes of the Association, the Board and Board committees, and the Association's financial records shall be maintained in the State of Washington and reasonably available for review and copying by the Owners. A reasonable charge may be imposed by the Association for providing copies.

11.2 Indemnification of Directors, Officers, Employees and Agents. The Association shall indemnify any Director, officer, employee or agent who was or is a party or is threatened to be made a party to any threatened, pending or completed action, suit or proceeding, whether civil, criminal, administrative or investigative (other than an action by the Association) by reason of the fact that such person is or was a Director, officer, employee or agent of the Association or is or was serving at the request of the Association as a Director, officer, employee or agent of another corporation, partnership, joint venture, trust or other enterprise, against expenses (including attorneys' fees), judgments, fines and amounts paid in settlement actually and reasonably incurred by said person in connection with such suit, action or proceeding if such person acted in good faith and in a manner that such person reasonably believed to be in, or not opposed to, the best interest of the Association, and, with respect to any criminal action or proceedings, had no reasonable cause to believe that such person's conduct was unlawful. The termination of any action, suit or proceeding by judgment, order, settlement, conviction, or with a plea of nolo contendere or its equivalent, shall not of itself create a presumption that a person did not act in good faith and in a manner which such person reasonably believed to be in, or not opposed to, the best interest of the Association, and, with respect to any criminal action or proceedings, had reasonable cause to believe that such person's conduct was unlawful. Payment under this clause may be made during the pendency of such claim, action, suit or proceeding as and when incurred, subject only to the right of the Association to reimbursement of such payment from such person, should it be proven at a later time that such person had no right to such payments. All persons who are ultimately held liable for their actions on behalf of the Association as a Director, officer, employee or agent shall have a right of contribution over and against all other Directors, officers, employees or agents and members of the Association who participated with or benefited from the acts which created said liability.

11.3 Enforcement; Attorneys' Fees. The Association and the Owners and any mortgagee holding an interest on a Lot shall have the right to enforce all of the covenants,



conditions, restrictions, reservations, easements, liens and charges now or hereinafter imposed by any of the provisions of this Declaration as may appertain specifically to such parties or Owners by any proceeding at law or in equity. Failure by either the Association or by any Owner or mortgagee to enforce any covenant, condition or restriction herein contained shall in no event be deemed a waiver of their right to do so thereafter. In the event suit or action is commenced to enforce the terms and provisions of this Declaration (including without limitations, for the collection of assessments), the prevailing party shall be entitled to its actual administrative costs incurred because of a matter or event which is the subject of the suit or action, attorneys' fees and costs in such suit or action to be fixed by the trial court, and in the event of an appeal, the cost of the appeal, together with reasonable attorneys' fees, to be set by the appellate court. In addition thereto, the Association shall be entitled to its reasonable attorneys' fees and costs incurred in any enforcement activity or to collect delinquent assessments, together with the Association's actual administrative costs, whether or not suit or action is filed.

11.4 Severability. Invalidation of any one of these covenants, conditions or restrictions by judgment or court order shall not affect the other provisions hereof and the same shall remain in full force and effect.

11.5 Duration. The covenants, conditions and restrictions of this Declaration shall run with and bind the land for a term of thirty-five (35) years from the date of this Declaration being recorded, after which time they shall be automatically extended for successive periods of ten (10) years, unless rescinded by a vote of at least ninety percent (90%) of the Owners and ninety percent (90%) of the first mortgagees; provided, however, that amendments that do not constitute rescission of the planned community may be adopted as provided in Section 11.6 and that if any of the provisions of this Declaration would violate the rule against perpetuities or any other limitation on the duration of the provisions herein contained imposed by law, then such provision shall be deemed to remain in effect only for the maximum period permitted by law or, in the event the rule against perpetuities applies, until twenty-one (21) years after the death of the last survivor of the now living descendants of Ex-President George Herbert Walker Bush. Provided however, any decision to rescind this Declaration must be approved by the City of White Salmon. In the event of the termination of this Declaration, the owners of Lots in Wyers End shall remain responsible for the maintenance obligations associated with Tracts A-C pursuant to the terms and conditions of this Declaration.

11.6 Amendment. Except as otherwise provided in Section 11.5, and the restrictions set forth elsewhere herein, this Declaration may be amended at any time by an instrument approved by not less than seventy-five percent (75%) of the total votes of each class of members that are eligible to vote. Any amendment must be executed, recorded and certified as provided by law; provided, however, that no amendment of this Declaration shall effect an amendment of the Bylaws or Articles without compliance with the provisions of such documents, and that no amendment affecting the general plan of development or any other right of Declarant herein contained may be effected without the express written consent of Declarant or its successors and assigns, including, without limitation, amendment of this Section 11.6.



11.7 Release of Right of Control. Declarant may give up its right of control in writing at any time by notice to the Association.

11.8 Unilateral Amendment by Declarant. In addition to all other special rights of Declarant provided in this Declaration, Declarant may amend this Declaration in order to comply with the requirements of the Federal Housing Administration of the United States, the Federal National Mortgage Association, the Government National Mortgage Association, the Federal Home Mortgage Loan Corporation, any department, bureau, board, commission or agency of the United States or the State of Washington, or any other state in which the Lots are marketed and sold, or any corporation wholly owned, directly or indirectly, by the United States or the State of Washington, or such other state, the approval of which entity is required in order for it to insure, guarantee or provide financing in connection with development of the Property and sale of Lots. Prior to the Turnover Meeting, no such amendment shall require notice to or approval by any Class A member.

11.9 Private Agreement. This Declaration and the covenants contained herein constitute a private agreement among the Owners of Lots within Wyers End and will not be enforced by the City of White Salmon. This declaration and the other governing documents have not been approved or disapproved by the City and do not restrict the City's authority to adopt or amend its development regulations. There may be conflicting requirements between this Declaration and the covenants contained herein and the City's regulations. The City will limit its review of a development application and the issuance of permits to the requirements of this Declaration and any conditions of approval. It is the duty of every person engaged in development within Wyers End to know the requirements of this Declaration and the covenants contained herein. In the event there is a conflict between a City regulation and this Declaration, any question regarding these deed restrictions shall be directed to the Association. The City will not be liable for any approvals or permits that are granted in compliance with City regulations, but which are not in compliance with this Declaration or the covenants contained herein.

11.10 Enforcement by City of White Salmon. The provisions of this Declaration relating to the preservation and maintenance of Common Areas shall be deemed to be for the benefit of the City of White Salmon, as well as the Association and Owners of Lots, and the City may, but shall not be required to, enforce such provisions by appropriate proceedings at law or in equity.

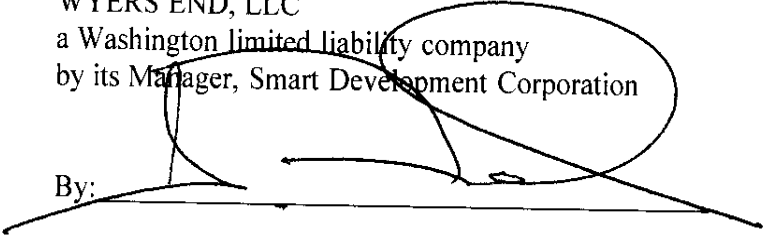
11.11 Resolution of Document Conflicts. In the event of a conflict among any of the provisions in the documents governing Wyers End, such conflict shall be resolved by looking to the following documents in the order shown below:

1. Declaration;
2. Articles;
3. Bylaws;
4. Rules and Regulations.



IN WITNESS WHEREOF, Declarant has executed this instrument this 11th day of April, 2008.

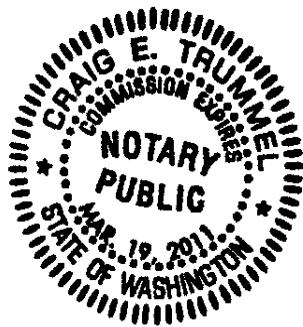
WYERS END, LLC
a Washington limited liability company
by its Manager, Smart Development Corporation

By: 

STATE OF Washington)
County of Klickitat) ss.

April 11th, 2008

Personally appeared before me the above-named Henry Fischer who, being duly sworn, did say that he is the President of Smart Development Corporation which is Manager of Wyers End, LLC, a Washington limited liability company, and that said instrument was signed in behalf of said company by authority of its members; and he acknowledged said instrument to be its voluntary act and deed.




NOTARY PUBLIC FOR Washington
My Commission Expires: 3/19/2011

